IN THE DISTRICT COURT OF GHANA, NGLESHIE AMANFRO DISTRICT COURT HELD ON 24TH APRIL, 2025 BEFORE HER WORSHIP EMELIA K. ABRUQUAH ESQ., (MRS)

SUIT NO: SUIT NO: A2/31/2024

LUCY DUMFEH **PLAINTIFF**

VRS

MICHAEL KWEKU SAGOE **DEFENDANT**

PLAINTIFF **PRESENT**

DEFENDANT **PRESENT**

LEGAL REPRESENTATION

JAMES K. ADJEI JNR. FOR THE PLAINTIFF **PRESENT**

SOLOMON AUBIN FOR DEFENDANT **PRESENT**

JUDGMENT

INTRODUCTION

The Plaintiff herein instituted this action against the Defendant on 6th February 2024 claiming the following reliefs

a. Recovery of GHC20,000 being outstanding debt Defendant owed Plaintiff in the year 2022 as a result of financial assistance Plaintiff gave Defendant to enable Defendant settled his bank loan with his bankers and supposed to finish payment in the same year 2022 but failed or refused to do so. All attempts to get the debt settled have been futile as the Defendant has no intention of fulfilling his obligation unless compelled to do so through coercive orders of this honourable Court.

b. Interest on the said amount from the current Ghana Commercial Bank rate.
c. Cost

The Defendant's Case

The Defendant denies owing the Plaintiff any debt and refutes the claim that there was a financial assistance arrangement or agreement between them. While he acknowledges taking a bank loan, he insists that the Plaintiff voluntarily offered him GHC20,000 as a gift, which she claimed was originally intended to buy a car for his daughter. The Defendant states that he rejected the gift for that purpose but agreed to use it to pay off part of his bank loan.

He maintains that at no point was he made aware that the money was intended as a loan, and had he known, he would not have taken on additional financial obligations to pay off another loan. Consequently, the Defendant asserts that he owes no obligation to the Plaintiff and denies any outstanding debt.

Evaluation of Evidence and Resolution of Issue

It is trite that in civil cases, that the burden of proof lies on the party who in his/her pleadings or writ raises issues essential to the success of his/her case. The one who alleges, whether a Plaintiff or a Defendant, assumes the initial burden of producing evidence. It is only when such a party has succeeded in producing evidence that the other party will be required to lead rebuttal evidence, if need be. Proof lies upon him who affirms or alleges, not upon him who denies since, by the nature of things, he who denies a fact cannot produce any proof. See **Sections 11(1) & (2), 12(2) and 14 of the Evidence Act, 1975 (NRCD 323)**; **Tagoe v. Accra Brewery [2016] 93 GMJ 103 S.C**; **Deliman Oil v. HFC Bank [2016] 92 GMJ 1 C.A.**

In the case of **Takoradi Flour Mills vs. Samir Faris [2005-2006] SCGLR 882**, the Supreme Court captured the trite position of the law relating to the burden of proof and stated as follows at page 900:

> *"To sum up this point, it is sufficient to state that this being a civil suit, the rules of evidence require that the Plaintiff produces sufficient evidence to make out his claim on a preponderance of probabilities, as defined in Section 12(2) of the Evidence Decree, 1975 (NRCD 323). Our understanding of the rules in the Evidence Decree, 1975 on the burden of proof is that in assessing the balance of probabilities, all the evidence, be it that of the Plaintiff or the defendant, must be*

considered and the party in whose favour the balance tilts is the person whose case is more probable of the rival versions and is deserving of a favorable verdict."

Similarly, in **GIHOC Refrigeration & Household vs. Jean Hanna Assi (2005-2006) SCGLR 458**, the Supreme Court held that:

> *"since the enactment therefore, except otherwise specified by statute, the standard of proof (the burden of persuasion) in all civil matters is by a preponderance of the probabilities based on a determination of whether or not the party with the burden of producing evidence on the issue has, on all the evidence, satisfied the judge of the probable existence of the fact in issue... Hence, by virtue of the provisions of NRCD 323, in all civil cases, judgement might be given in favour of a party on the preponderance of the probabilities..."*

I reference ***Takoradi Flour Mills v. Samir Faris [2005-2006] SCGLR 882*** at page 890 where the Supreme Court held as follows; *''In law, where evidence is led by a party and that evidence is not challenged by his opponent in cross-examination, and the opponent did not tender evidence to the contrary, the facts deposed to in that evidence are deemed to have been admitted by the party against whom it is led, and must be accepted by the court."*

<u>Plaintiff's Evidence</u>

In Plaintiffs' evidence in chief by way of Witness Statement filed on 26th February 2024 she testified that she previously attended the Defendant's church, Kavod Chapel International, and lived on the same compound with defendant before he relocated. In May 2022, she reported a case of fraud to the Police CID Headquarters, and as part of the investigation, the suspect made payments to the police amounting to GHC200,000.00 and USD$10,000.00 After receiving the money, she donated GHC35,000.00 to assist with renovations at the Defendant's church and also provided financial assistance for his ailing mother's medical treatment.

On 17th July 2022, the Defendant approached her for financial assistance, explaining that he had taken a loan from First National Bank Ghana to purchase a vehicle but was struggling with repayment. He requested a loan of GHC20,000.00, promising to repay it soon. He later wrote to his creditors, proposing a loan restructuring, and acknowledged in the letter that he had made a substantial payment of GHC20,000.00. This letter was tendered as **Exhibit A**.

Despite waiting patiently, the Plaintiff did not receive repayment. When her eldest son gained admission to the University of Ghana, she approached the Defendant for the money, but he became hostile and reported her to the Amanfro Police Station for harassment. At the police station, after hearing both sides, the officers advised the Defendant to repay the loan since he admitted receiving money from the Plaintiff for his debt repayment. The Defendant's father-in-

law, Emmanuel Amoako Okore, intervened, and during a meeting, the Defendant agreed to settle the debt in monthly instalments of GHC1,000.00, issuing postdated cheques for the payments.

However, when no payments were forthcoming, the Plaintiff followed up with the Defendant's father-in-law via WhatsApp, who forwarded a message from the Defendant stating that he was waiting for a new cheque book. The father-in-law subsequently issued a postdated cheque of GHC1,000.00 from his Fidelity Bank account. The Plaintiff refused to accept it, as she had no financial dealings with him and insisted that the Defendant honour his own commitment. The WhatsApp conversation and the cheque were tendered as **Exhibit B series** and **Exhibit C**, respectively.

The Plaintiff called one witness in support of her case and the Witness filed a Witness Statement and a supplementary witness statement filed on 7th March and 10th June respectively and testified as follows; The Witness Rose Fosua Dumfeh, the Plaintiff's elder sister, testified that in July 2022, the Plaintiff informed her that she had given the Defendant GHC20,000.00 in cash to help resolve a pressing issue. At the time, the Plaintiff was attending the Defendant's church.

Later, the Plaintiff approached the Defendant for a refund, as she needed the money for her son's university admission and related expenses. However, the Defendant was unwilling to repay, which led to a dispute between them. To help resolve the matter amicably, PW1 approached the Defendant's mother-in-law, who assured her that she would ensure the Defendant repays the money.

Following this intervention, the Defendant visited her at her home, stating that he was willing to repay the amount but could only do so in instalments. He proposed issuing postdated cheques of GHC1,000.00 monthly until the full amount was repaid. As a result, PW1 informed the Plaintiff of this proposal, but the Plaintiff insisted that she needed at least GHC10,000.00 in cash immediately, with the remainder to be paid in installments. The Defendant therefore requested for additional time to raise the money, but after a prolonged period without any update, PW1 followed up with him via phone call. The Defendant responded that he was still facing financial difficulties and needed more time to make the payment.

Defendant's Evidence

In Defendant's evidence in chief by way of Witness Statement filed on 23rd February 2024, Pastor Michael Kweku Sagoe, the Defendant testified that, he is the lead pastor of Kavod Chapel International and acknowledges that he knows the Plaintiff, as she used to attend his church. According to him, in 2022, the Plaintiff informed him that someone owed her money, which had been paid to the Criminal Investigation Department (CID) of the Ghana Police Service following

a complaint she had lodged. However, she faced challenges retrieving the money. She asked the Defendant to pray with her for its release, which he did willingly and without any expectation of compensation. On multiple occasions, he also accompanied her to the CID headquarters, and he later delegates other pastors to assist her.

Eventually, the money was released to the Plaintiff, and out of gratitude, she gave thanksgiving gifts to the church and some members. The Plaintiff later mentioned her intention to buy a car for the Defendant's daughter, but he declined, stating it was not a priority. Instead, he informed her about his pressing financial difficulty, which is a loan facility he had taken from a bank.

According to the Defendant, the Plaintiff voluntarily decided to gift him GHC20,000.00 to help pay off the loan, which he accepted with gratitude. He insists there was no agreement, written or oral, indicating that the amount was a loan. No terms of repayment, interest, or due date were discussed. He further states that members of the church were aware of this gift, as it was publicly acknowledged.

More than a year later, in 2023, the Plaintiff had an altercation with an associate pastor of the church, during which she assaulted the pastor during a church service. The Defendant disapproved of her actions and asked her to apologize. Following this incident, the Plaintiff became upset, left the church, and subsequently began demanding a refund of the GHS20,000.00. The Defendant maintains that he does not owe the Plaintiff any money and that the amount she gave him was a gift, not a loan. He argues that her demand for repayment is a consequence of his refusal to support her actions during the altercation with the associate pastor.

The Defendant called one witness, Adriana Sam, who testified as follows:

DW1, a member of Kavod Chapel International at Ngleshie Amanfro, testified that she knew the Plaintiff, who previously attended the church and served as the Secretary of the Welfare Committee. She recounted that in 2022, while the Plaintiff was still part of the church, she started organizing a fitness program on Saturdays for interested church members. During one of these sessions, the Plaintiff expressed deep gratitude toward the Defendant, repeatedly emphasizing how appreciative she was of the assistance he had provided her. The Plaintiff mentioned to DW1 and four others that she had offered to purchase a car for the Defendant's daughter, but the Defendant declined the offer. Instead, the Defendant informed the Plaintiff that he needed funds to settle his bank loan.

The Plaintiff then stated that she gifted the Defendant an amount of GHS20,000.00 to help him pay off part of his loan. She further mentioned that she was expecting more funds in the future, and once received, she intended to gift the Defendant the remaining amount to fully settle the

loan. Additionally, DW1 recalled an instance where the Plaintiff invited her into her bedroom, showed her a Bible, and told her that she was making travel arrangements. If everything worked out, she planned to gift the Bible to the Defendant. The witness also stated that the Plaintiff had informed other church members that she had gifted the Defendant money, and at no point did the Plaintiff suggest that it was a loan. DW1 found it surprising that the Plaintiff was now claiming that the money was a loan rather than a gift.

ISSUE FOR DETERMINATION

It is not in doubt or dispute that the defendant received GHC 20,00.00 from the plaintiff, what is however in issue is worth the determination by this court is, Whether or not the GHC20,000.00 given to the defendant was a gift or a lone

In determining whether the transaction was a loan or a gift, the court will access the relevant evidence before the court including the actions of the parties. The plaintiff in her evidence indicated that she contributed significantly to the tune of about GHC 35,000.00 for the renovation of the church building without demanding any repayment because it was a gift she gave to the church. However, the GHC20,00.00 given to the defendant was a loan as she never intended to gift it to the defendant, which he also promised to pay it back but has since failed to do so. The defendant on the other hand, said the plaintiff informed him of her intention to buy a car for his three years old daughter which he politely declined but told the plaintiff that he has a pressing need, which was a loan facility he took from the bank and the plaintiff decided to gift him GHC20,000.00. The question is what is the relationship between the plaintiff and the defendant that will make her gift that amount of money to him? From the evidence on record, the plaintiff was a member of the defendant's church and nothing more. The law looks to see if there is an intend from the transferor of a gift especially where the gift is to a non-family member, the law presumes that parties intended a bargain and not to make a gift. See Gilbertsondavis.com on Canadian Law on Gift and Loan

The Supreme Court has recently held in the case of GIWAH v. LADI [2013-2014] 2 SCGLR 1139 that to prove a valid gift, the party must establish that the gift was offered and accepted and must be witnessed by somebody other than the donor and that the bare assertion of the making of a gift without more does not constitute sufficient proof of the existence of the gift.
The defendant in this case in an answer told the court that the gift was made to him and he accepted with gratitude publicly in the presence of his congregants but the defendant did not find it prudent to call any of those church members who witness the donation of the gift of

GHC20,00.00 to come and corroborate this. I say so because the only witness of the defendant had this to say when crossed examined by Counsel for the plaintiff;
Q. Were you present when the plaintiff gave the defendant a loan of GHC20,000.00
A. When the plaintiff was giving the gift to the defendant, I was not present
Q. did the defendant again inform you upon receipt of the loan of GHC20,000.00
A. He informed the whole church that the plaintiff has gifted him an amount of GHC20,000.00.
This is a witness who testified before the court that it was the Plaintiff who told her and four others that she has gifted the Defendant with GHC20,000.00 and now says, when questioned that the defendant informed the whole church. Why these inconsistencies and contradictions. Anyway, the law is that when a gift is being offered, there must be a witness and this is missing in this instant case because the defendant never invited any witness to come and testify his/her presence when the alleged gift was being offered the defendant because his sole witness told the court that she was not present when the GHC20,000.00 was given to the defendant. The court does not deal in spiritualities but the law and evidence so whether it is the defendant's prayer that made the plaintiff's money to be released or not the court is not in a position tell. Anyway, assuming without admitting that, that was the case, does that make the plaintiff accountable to the defendant? The answer is no. even if so, the plaintiff stated items she expended money to buy for the defendant's church as a gift and has not demanded refund and this evidence has not been disputed.
In considering the evidence of the plaintiff and her witness visa via the evidence of the Defendant and his witness, the court I must say finds the Plaintiff's evidence to be more cogent and credible than that of the Defendant. I say so because if it was a gift, the Defendant would have invited at least his wife or anyone who witness thee donation of the said gargantuan gift being gifted to him to come to court to testify to that fact but this was not done, so it was what the defendant said against that of the Plaintiff, that the court finds the Plaintiff's evidence more impressive and credible. In the case of THEOPHILUS KUSHIGBOR V. Y. B. SALIFU & 10 ORS (2012) JELR 64462 (HC). The principle on such evidence in civil cases is that, where the evidence of the parties boils down to the oaths of one party and his witnesses against the oaths of the other party and his witnesses, the decision of the court may safely be based on the trial court's impression of the credibility of the parties and their witnesses. As already stated above, the court finds the Plaintiff's evidence more impressive and credible than that of the Defendant. The court I must say did not put much value on the evidence of the two witnesses of the parties, thus PWI and DW1 because both evidence was based on here say, none of them was present when the said money was being given to the Defendant. The court, in the

preponderance of the probabilities, finds the Plaintiff's evidence more probable than not. I therefore enter judgment in favour of the Plaintiff to recover GHC20,00.00 being loan she gave to the Defendant.
Interest to be assessed at the current bank rate from July 2022 till date of final payment.
I award costs of GHC1000.00 in Plaintiff's favour.

(SGD)

H/W EMELIA K. ABRUQUAH (MRS)

(MAGISTRATE)